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IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 09-10-2026

CORAM

THE HON'BLE MR JUSTICE N. SATHISH KUMAR

AND

THE HON'BLE MR.JUSTICE GK.MUTHUKUMAAR

OSA Nos. 185 and 186 of 2026

CNR: {HCMA012449822026}

&

C.M.P.Nos.28123 and 28125 of 2026

Case QR

Ram Kumar.M
S/o.H.Mahesh Babu

..Appellant
in both appeals

Vs

Gogireddy Lalitha Reddy
C/o.M Ram Kumar

..Respondent(s)
in both Appeals

Common Prayer : Original Side Appeals filed under Clause 15 of the Letters Patent read with Order XXXVI, Rule 1 of Original Side Rules to set aside the common order dated 01.10.2026 in Application No.1704 of 2026 and Application No.3011 of 2025 in Original Petition No.335 of 2025.

For Appellant(s): Ms.B.Poongkhulali
in both appeals

For Respondent(s): Ms.Kalpana
in both appeals

COMMON JUDGMENT

(Judgment of the Court was delivered by N.Sathish Kumar J.)

A challenge has been made to the order of the learned Single Judge dated 01.10.2026 with regard to Point No. 3 of Part 2 of the Joint Parenting Plan,

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which provides that during the Dussehra holidays (from 09.10.2026 to 25.10.2026), the child shall stay with the respondent-mother from 09:00 AM to 09:00 PM. According to the learned counsel for the appellant, as per the school Calender, the child has school from 12.10.2026 to 16.10.2026, and the actual holidays is only from 17.10.2026 to 20.10.2026. Consequently, the parenting plan directed by the learned Single Judge is unworkable, necessitating the filing of the present appeal.

2. The respondent-wife is present in Court and we interacted with the respondent-wife and the learned counsel for the appellant. After interaction, the following arrangement is agreed before us:

i) The child shall be handed over to the respondent-mother today (09.10.2026) evening at 06:00 PM and the respondent-mother shall handover the child back to the appellant-father on 11.10.2026 at 06:00 P.M. Thereafter, the child can continue to go to school from 12.10.2026 to 16.10.2026 and on 16.10.2026, evening around 06:00PM, the appellant-husband shall handover the child to the respondent-mother and the child shall continue to be with the respondent-mother on 17.10.2026 and 18.10.2026 through out and she shall handover the child back on 19.10.2026 at 10:00 A.M and appellant-husband shall have the custody for two days i.e., 19.10.2026 and 20.10.2026.

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ii) During the custody of the child, the respondent-mother shall facilitate the child to interact with the father through video-call.

3. Let the matter be worked out before the learned single Judge with regard to other issues. It is made clear that during interim custody, the respondent shall not take the child away from Chennai. In the event of violation of any of the conditions, the respondent-wife will be proceeded for contempt.

With the above direction, both these appeals are disposed of. There shall be no order as to costs. Consequently, the connected miscellaneous petitions are closed.

(N.S.K.,J.) (G.K.M.,J.)
09-10-2026

Index: Yes/No
Speaking/Non-speaking order
Neutral Citation: Yes/No
gpa

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N.SATHISH KUMAR, J.
AND
GK.MUTHUKUMAAR, J.

gpa

OSA Nos. 185 and 186 of 2026
CNR: {HCMA0124498220 26}
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C.M.P.Nos.28123 and 28125 of 2026

09-10-2026

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